

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

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Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

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TENTATIVE RULINGS

August 03, 2026

	Case Name	Tentative
102	2026-01547622 Zarvos vs. Kevin Van Raden, Trustee of the Van Raden Family Trust	Motion to Set Aside/Vacate Default and Judgment Defendant Kevin Van Raden’s Motion to Set Aside Entry of Default and Default Judgment is granted. The Court finds Defendant should be granted discretionary relief under CCP section 473(b). The statute provides, in relevant part, that: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) If a party moves promptly for relief from default, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), “very slight evidence is required to justify a trial court’s order setting aside a default.” (<i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526, citing <i>Shamblin v. Brattain</i> (1988) 44 Cal.3d 474, 478.) The statute is to be “liberally construed” as “sound policy favors the determination of actions on their merits.” Any doubts “must be resolved in favor of the party seeking relief from default.” (<i>Shapell Socal Rental Properties, LLC v. Chico’s FAS, Inc.</i> (2022) 85 Cal.App.5th 198, 212.) A motion for discretionary relief under section 473(b) must satisfy three requirements. First, the motion must be made “within a reasonable time” and “in no case exceeding six months” after the entry of default (unless relief is sought on equitable grounds). (Code of Civ. Proc. § 473, subd. (b).) Second, the motion “shall be accompanied” by a copy of the answer or other proposed pleading to be filed, “otherwise the application shall not be granted.” (Code of Civ. Proc. § 473, subd. (b).) Lastly, the motion must show that default was taken as a result of mistake, inadvertence, surprise, or excusable neglect. The Court finds all three requirements have been satisfied, here. First, the motion was timely made within approximately one month of the entry of default and entry of default judgment. (See ROA 15, 20, 32.) Second, the motion is accompanied by a copy of the proposed answer. (See ROA 33.) Lastly, the motion is supported by a declaration from Defendant explaining that default was entered as a result of his lack of understanding that he had to respond within 30 days. (See ROA 28.) The Court does not find Plaintiff’s arguments as to why relief should be denied, to be persuasive. The Court also declines to exercise its discretion to impose a \$1,000 penalty against Defendant, as requested by Plaintiff. The default (ROA 15) and default Judgment (ROA 20) entered against Defendant are, hereby, vacated. Defendant shall file and serve his proposed answer by August 14, 2026. The Court sets a case management conference on January 4, 2027 at 10:00 a.m. in Department C27. Defendant shall give notice of the ruling.

103	2017-00910991 NNN Capital Fund I, LLC vs. Mikles	Motion to Set Aside/Vacate Judgment Defendant/Judgment Debtor Todd Anthony Mikles’ motion to vacate the judgment(s) in this case is taken off calendar. This Court lacks jurisdiction to hear the motion. Mr. Mikles is ordered to contact the Court to re-set the motion for hearing after remittitur issues, if he chooses. On 3/20/26, the Court of Appeal issued its published Opinion reversing the Judgment(s) in this case. (ROA 1551, 1583.) Plaintiff NNN Capital Fund I, LLC has filed a Petition for review with the California Supreme Court. (O’Keefe Decl., ¶15.) Code of Civil Procedure § 916(a) provides that the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby. (CCP § 916.) The trial court may proceed only upon matters embraced in the action and <i>not affected</i> by the judgment or order (CCP § 916.) Jurisdiction of appellate court terminates and jurisdiction of trial court reattaches only upon remittitur. (<i>Andrisani v. Saugus Colony Limited</i> (1992) 8 Cal.App.4th 517, 523.) Here, the Court lacks jurisdiction to hear this motion seeking to vacate the Judgment(s) because remittitur has not issued. Plaintiff is ordered to serve notice of this ruling.
105	2025-01485193 Scott vs. Stronghold LLC	Motion - Other Plaintiff Raeline Scott’s Motion for Order to Serve Secretary of State is granted. Corporations Code section 1702 permits the court to authorize delivery of process to the Secretary of State when the plaintiff has shown that process could not be served with reasonable diligence on the corporation’s designated agent, or on the corporation by any other authorized method. (Corps. Code § 1702, subd. (a).) The Court finds Plaintiff has proffered evidence that her process server was reasonably diligent in attempting to serve process on defendant Innovative Real Estate Planning Group, Inc.’s agent, Vladimyr Frazilus, at the address designated: 1932 E Deere Ave, Suite 240, Santa Ana, CA 92705. However, the process server was told by the current tenant that defendant was no longer the tenant at that address. (ROA 36 [Nguyen Decl. at ¶ 6]; see also ROA 28 [Declaration of Due Diligence].) Despite several more efforts to locate a potential address where defendant’s agent could be served, Plaintiff was not able to effect service at any of these locations. (Nguyen Decl. at ¶¶ 7-16.) Absent a physical address, the Court finds Plaintiff is not able to effect service of process by any of the available methods (e.g., personal, substitute, acknowledgement of receipt) on Defendant. Accordingly, the Court orders service to be made upon Innovative Real Estate Planning Group, Inc. by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State’s office in the capacity of assistant or deputy, one copy of the process for defendant, together with a copy of the order authorizing such service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. (Corps. Code, § 1702, subd. (a); Code Civ. Proc., § 416.10, subd. (d).)

106	2024-01445728 Nguyen vs. Nguyen	Motion for Attorney Fees Cross-defendant Christopher Langley’s motion for attorneys’ fees in the amount of \$33,865.00 against cross-complainants Tina Nguyen and Ly Thi Nguyen pursuant to Code of Civil Procedure section 425.16(c)(1) is granted. [ROA #135.] Cross-Complainants’ request for judicial notice is denied as not relevant to the pending fee motion. <i>Lockyer v. Shamrock Foods Co.</i> (2000) 24 Cal.4th 415, 422 n.2 (“There is, however, a precondition to the taking of judicial notice in either its mandatory or permissive form—any matter to be judicially noticed must be relevant to a material issue.”)(citations omitted). The Court finds the requested hourly rate reasonable. The Court also finds the number of hours expended and billed by Langley’s counsel to be reasonable. Thus Langley’s motion for attorneys’ fees is granted. Moving party is ordered to give notice.
107	2024-01441679 Boukova vs. Volkswagen Group of America, Inc.	Motion for Attorney Fees The Court grants Plaintiffs Roumyana Boukova and Mariah Denkov’s motion for attorney’s fees against Defendant Volkswagen Group of America Inc. (VGA) in the amount of \$18,731.50 and costs in the amount of \$2,541.57. The Court finds the hourly rates and actual time expended to be reasonable. However, the Court declines to award any multiplier. Additionally, the Court will not award the anticipated attorneys’ fees requested for reviewing and analyzing defendants opposition and drafting a reply to the opposition. This motion was not opposed. Moving party is ordered to give notice.
108	2025-01466875 Kramer vs. Schoolsfirst Federal Credit Union	Motion to Be Relieved as Counsel of Record Before the Court is Sarah Shapero, Esq. and Shapero Law Firm, P.C.’s motion to be relieved as counsel for Plaintiff Paul Kramer. The Proof of Service shows that Defendants were served with this Motion via their Counsel Cathy Granger, Esq. who was served at “220 Montgomery St STE 1100, San Francisco, CA 94104”. (See ROA 135.) This is not the address on the Answer or recently filed CMC statement. (See ROAs 36, 111.) The Court does not see a change of address form filed. The Court will hear from Counsel on the issue of notice to Defendants of this hearing and/or whether Defendants waive any notice defect. Should the notice issue not be cured, this matter is continued to September 28, 2026 at 2:00 p.m. in Department C27. Moving party is ordered to give notice.

109	2025-01467077 Monsalvo vs. Elite Beverage International, Inc.	Motion for Terminating Sanctions The hearing on Plaintiff Diana Monsalvo’s Motion for Terminating Sanctions is continued from 8/03/26 to 10/05/26 at 2:00 PM in Department C27, unless Plaintiff files a proof of service showing that the motion was properly served on Defendants Elite Beverage International, Inc. and Steve Rice. The proof of service attached to the motion reflects that the motion was served on Defendants’ counsel at: “tnonnandin@pnbd.com” and “cathyjones@pnbd.com.” (ROA 165.) Neither address is recognized as an email address of record for Defendants’ counsel. Because the motion is not opposed, the Court cannot confirm whether the motion was properly served. If a corrected proof of service is filed before the hearing, the Court will proceed to the merits of the motion. Otherwise, the hearing on the motion is continued to 10/5/26, at set forth above, and Plaintiff is ordered to file a proper proof of service no later than 9/21/26. If continued, Plaintiff is ordered to give notice of the continued hearing.
110	2025-01467876 VM Development II LLC vs. Sea Pointe Estates Homeowners Associations	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint Defendant William O’Keefe’s demurrer to Plaintiff VM Development II LLC’s first amended complaint (“FAC”) is sustained with 15 days leave to amend. [ROA # 108.] Defendant’s motion to strike punitive damage allegations and prayer is moot as to paragraph 137 in light of the demurrer ruling. The motion is granted as to paragraph 133 with 15 days leave to amend. Plaintiff’s FAC Plaintiff alleges it owns residential property governed by a homeowners’ association, Defendant Sea Pointe Estates Homeowners Association (sometimes hereinafter referred to as the “HOA”) and CC&Rs. Plaintiff sought approval to construct an ADU on the property, which ADU would front a different street from the main house. The ADU itself was approved but “[t]he HOA has functionally denied the construction of the ADU on the Property by refusing to approve the construction of reasonable and necessary structures allowing access to the ADU, including a garage, a driveway, and a short set of stairs from the driveway to the ADU front entrance (the “Access Components”).” [FAC, ¶¶ 5, 41.] This denial makes the ADU unusable as a practical matter. [<i>Id.</i>, 6.] Plaintiff alleges this denial was unsupported by the CC&Rs and unlawful for a variety of reasons. [FAC, ¶¶ 26-91.] Defendant O’Keefe is alleged to be an agent of the HOA, its “Consulting Architect.” [FAC, ¶ 19.] As an agent of the HOA, O’Keefe is alleged to have an important role in its wrongful denial of the approvals needed for the Access Components. [See, e.g., FAC, ¶¶ 19, 41, 45, 56, 72, 87, 89.] Plaintiff asserts six causes of action in total: 1. DECLARATORY RELIEF; 2. BREACH OF CONTRACT (COVENANTS, CONDITIONS, AND RESTRICTIONS AND RULES); 3. BREACH OF IMPLIED COVENANT OF GOOD FAITH AND FAIR DEALING; 4. UNFAIR BUSINESS PRACTICES;

5. BREACH OF FIDUCIARY DUTIES; and
6. PROFESSIONAL NEGLIGENCE.

Plaintiff also seeks punitive damages on the fourth and fifth causes of action. [FAC, ¶¶ 133, 137 and prayer item 5.]

Demurrer

Legal Standard

A demurrer can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. Limited to the “four corners” as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.

On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.

Discussion

Second and Third Causes of Action for Breach of Contract and Breach of the Covenant of Good Faith and Fair Dealing

A core element for both the first and second causes of action is the existence of a contract between Plaintiff and O’Keefe. *First Commercial Mortgage Co. v. Reece* (2001) 89 Cal.App.4th 731, 745 (stating elements for breach of contract cause of action); CACI 325 (setting out elements for breach of the covenant of good faith and fair dealing cause of action).

The only contract alleged in the FAC is the HOA’s CC&Rs. There is no allegation that O’Keefe is a party to the CC&Rs. Rather, he acted as the HOA’s agent in connection with the HOA’s actions relative to the CC&Rs.

Plaintiff argues that because O’Keefe is alleged to have acted wrongfully as the agent of the HOA, that is sufficient to state a cause of action against him for breach of the HOA’s contract with Plaintiff.

It is correct that when an agent acting for a principal acts wrongfully, he may be personally liable to a third party (rather than only the principal being liable). See Civ. Code §2343. But that liability takes the form of breach of contract liability for a purported contract of the principal only in the limited circumstance when the agent himself enters into the contract in the name of the principal in bad faith – that is, knowing he does not have authority to enter into the contract on behalf of his purported principal. *Hill v. Superior Court* (2016) 244 Cal.App.4th 1281, 1287–1288.

Plaintiff has alleged neither a contract between it and O’Keefe nor a written contract that O’Keefe in bad faith purported to enter into on behalf of the HOA.

The demurrer to both the first and second causes of action is therefore sustained.

Fifth Cause of Action for Breach of Fiduciary Duty

The elements of breach of fiduciary duty are (1) existence of a fiduciary duty, (2) breach of that duty, and (3) damages. *Twomey v. Mitchum, Jones & Templeton Inc.* (1968) 262 Cal. App. 2d 690.

A fiduciary or confidential relationship can arise when confidence is reposed by persons in the integrity of others, and if the latter voluntarily accepts or assumes to accept the confidence, he or she may not act so as to take advantage of the other's interest without that person's knowledge or consent. *Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1534; *Pierce v. Lyman* (1991) 1 Cal.App.4th 1093, 1101–02. A fiduciary relationship is a relationship existing between parties to a transaction wherein one party is duty bound to act with the utmost good faith for the benefit of the other. “Before a person can be charged with a fiduciary obligation, he must either knowingly undertake to act on behalf and for the benefit of another, or must enter into a relationship which imposes that undertaking as a matter of law.” *City of Hope Nat. Medical Center v. Genentech, Inc.* (2008) 43 Cal.4th 375, 386.

A fiduciary relationship is “any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party. Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent....” *Wolf v. Superior Court* (2003) 107 Cal.App.4th 25, 29 (citations and internal quote marks omitted). Traditional examples of fiduciary relationships in the commercial context include trustee/beneficiary, directors and majority shareholders of a corporation, business partners, joint adventurers, and agent/principal. *Id.* Inherent in each of these relationships is the duty of undivided loyalty the fiduciary owes to its beneficiary, imposing on the fiduciary obligations far more stringent than those required of ordinary contractors. *Id.*

The essential elements of a fiduciary relationship can be distilled as follows: 1) The vulnerability of one party to the other which 2) results in the empowerment of the stronger party by the weaker which 3) empowerment has been solicited or accepted by the stronger party and 4) prevents the weaker party from effectively protecting itself. In short, vulnerability is the necessary predicate of a confidential relation, and the law treats it as absolutely essential.” *Persson v. Smart Inventions, Inc.* (2005) 125 Cal.App.4th 1141, 1161; in accord, *Wolf v. Superior Court* (2003) 107 Cal.App.4th 25, 31.

Plaintiff has not alleged the elements of a fiduciary relationship between itself and O’Keefe.

Nor would an HOA’s fiduciary duty fill the gap. The HOA appears to have a fiduciary duty to Plaintiff here. See *Cohen v. Kite Hill Community Assn.* (1983) 142 Cal.App.3d 642, 650-651 (holding the homeowners' association owed a fiduciary duty to its members in connection with its approval or rejection of certain improvements proposed by homeowners).

But the apparent fact that the HOA has a fiduciary duty to Plaintiff in making approval/disapproval decisions in connection with the ADU does not mean that O’Keefe himself, acting as an agent for the HOA, had a fiduciary duty to Plaintiff. See *Everest Investors 8 v. Whitehall Real Estate Limited Partnership XI* (2002) 100 Cal.App.4th 1102,

1104 (“When the nonfiduciary is an agent or employee of the fiduciary, the nonfiduciary is entitled to the benefit of the “agent’s immunity rule” (and thus not liable on a conspiracy theory) unless the nonfiduciary was acting for its own benefit.”).

Accordingly, the demurrer to this cause of action is sustained.

Motion to Strike

Legal Standard

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not support by the allegations of the complaint. Code Civ. Proc. § 431.10(b).

The same liberal policy regarding amendments that applies to the sustaining of demurrers applies for motions to strike. If a defect may be correctible, leave to amend should usually be given.

Discussion

Punitive Damages

To support exemplary damages, the complaint must allege facts of defendant’s oppression, fraud, or malice. Civ. Code § 3294(a). “Malice” is defined as conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. Civ. Code § 3294(c)(1). “Oppression” is defined as despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. Civ. Code § 3294(c)(2). “Fraud” is defined as an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. Civ. Code § 3294(c)(3).

As noted above, the punitive damage allegations that Defendant seeks to strike include paragraph 133, which is in the fourth cause of action for unfair competition (violation of B&P Code §17200) and paragraph 137, which is in the fifth cause of action for breach of fiduciary duty.

As to the latter paragraph (137), the motion to strike is moot in light of the Court sustaining the demurrer to the fifth cause of action for breach of fiduciary duty.

As to paragraph 133, punitive damages are not available on a claim for unfair competition under Business and Professions Code section 17200. *See Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1148 (“attorney fees and damages, including punitive damages, are not available under the UCL”).

The Court is thus inclined to grant the motion to strike as to paragraph 133. As this issue was not briefed, the Court will hear from counsel should any party wish to be heard.

Moving party is ordered to give notice.

111	2026-01548956 Audenis vs. Airbnb, Inc	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Airbnb, Inc.'s unopposed motion to compel arbitration of Patrick Audenis' claims is granted. Defendant has established a valid arbitration agreement between the parties. Plaintiff filed a response to Defendant's motion stating that he does not oppose and has voluntarily initiated arbitration proceedings before the American Arbitration Association, and that arbitration is presently pending. Accordingly, the motion is granted, and this matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The case management conference is vacated. The Court sets a status conference on October 4, 2027 at 10:00 a.m. in Dept. C27. At least 5 court days prior, Defendant is ordered to file a status conference report updating the Court on the status of arbitration. Defendant shall give notice.
112	2025-01526956 Mandell vs. O'Donnell	1. Petition for Writ 2. Case Management Conference Petitioner Jeffrey Mandell's Petition for a peremptory writ of mandamus requiring Respondents Brendan O'Donnell and BodEv, Inc. to allow him to inspect and copy the records of BodEV, Inc. pursuant to Corp. Code § 1603(a) is granted. Code of Civil Procedure §1085 authorizes any court to issue a writ of mandate to "any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person." (Code Civ. Proc., § 1085.) One such instance is where a shareholder seeks such an order through a Corporations Code section 1601 demand, or a director seeks such an order through a Corporations Code section 1602 demand for inspection and copying of corporate records and documents. There are two essential requirements to the issuance of an ordinary writ of mandate under Code of Civil Procedure section 1085: (1) a clear, present and ministerial duty on the part of the respondent, and (2) a clear, present and beneficial right on the part of the petitioner to the performance of that duty. (<i>California Ass'n for Health Services at Home v. Department of Health Services</i> (2007) 148 Cal.App.4th 696, 704.) A shareholder (or group of shareholders) owning at least 5% of the corporation's outstanding voting shares has an <i>absolute, unconditional right</i> to inspect the list of shareholders. (Corp. Code §1600(a).) A shareholder also has a <i>limited</i> right to inspect the corporation's accounting books, records, as well as minutes of proceedings of the shareholders, board and board committees. Such records and minutes are open to inspection upon <i>written</i> demand showing a "<i>purpose reasonably related</i> to the holder's interests as a shareholder ..." (Corp. Code §1601(a)(1).)

In comparison, directors of a corporation have an *absolute* right to inspect “all books, records and documents of every kind,” as well as the corporation's *physical properties*. (Corp. Code §1602.) Such inspection by a director may be made in person or by agent or attorney and the right to inspect includes the right to make copies or extracts. (*Ibid.*)

The Petition was filed on 11/14/25. On 1/6/26, Respondents filed their Answer, which is not verified. (ROA 58.)

“Ordinarily an answer to a petition for an extraordinary writ, like the petition itself, must be verified. (*Epstein v. Superior Court* (2011) 193 Cal.App.4th 1405, 1409 [citing Code Civ. Proc., § 1089; Cal. Rules of Court, rule 8.487(b)(1)].)

“One possible consequence of filing a return that contains neither a demurrer nor a verified answer is that the return will be stricken and not considered in determining the merits of the mandate petition.” (*Agricultural Labor Relations Bd. v. Superior Court* (2016) 4 Cal.App.5th 675, 681 [citing *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1287].)

Alternatively, the Court could accept all well-pleaded and verified allegations in the writ petition as true. (*Id.* at 682.) In doing this, the Court treats the response as “return by demurrer, because a demurrer admits the facts pleaded in a writ petition.” (*Id.*; see also *Central Bank v. Superior Court* (1978) 81 Cal.App.3d 592, 600 (“the unverified answer before us is ineffective in denying the allegations of the verified petition, and we deem those allegations... to be true”).)

Based on the foregoing, the Court in determining the Petition, accepts the allegations therein as true and admitted by Respondents. Even if the Answer had been properly verified, Respondents failed to file a substantive opposition to Petitioner’s Motion, stating only that “Respondents’ Oppose the Motion for Writ for reasons previously stated,” and referencing Respondents’ ex parte application which the Court denied on 7/21/26. (ROA 141, 142.) “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (*People v. Stanley* (1995) 10 Cal.4th 764, 793; see also *Nationwide Ins. Co. of America v. Tipton* (2023) 91 Cal.App.5th 1355, 1365; CRC, Rule 3.1113(b).)

Petitioner establishes in the Petition and moving papers that he is a shareholder owning at least 5% of the corporation's outstanding voting shares. (Mandell Decl., ¶¶ 3, 4, 6, 9.) Thus, he has a right to inspect the list of shareholders as well as the corporation's accounting books, records, as well as minutes of proceedings of the shareholders, board and board committees. (Corp Code, §§ 1600(a), 1601(a)(1).)

And, Petitioner has established that the inspection is sought in connection with his interests as a shareholder. (Mandell Decl., ¶ 34.)

Petitioner also alleges in the Petition and submits evidence that he remains a director. (Verified Petition, Ex. A, ¶¶ 31-32, 34, 35, 50; Mandell Decl., ¶¶ 3-12, 40-39.) Thus, pursuant to Corp. Code §1602, Petitioner has an absolute right to inspect all books and records of the corporation.

Upon a showing by the moving party, the burden shifts to the corporation to show “why the inspection should be curtailed by ‘just and proper conditions.’” (*Fowler v. Golden Pacific Bancorp, Inc.* (2022) 80 Cal.App.5th 205, 217.) Respondents have not met this

	burden.
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As a result, pursuant to the foregoing, Respondents are ordered to allow Petitioner to inspect the corporate records of BodEv, Inc. pursuant to Corp. Code, § 1600 et seq. within the next 15 days at a time and place mutually convenient to both parties.

Petitioner shall prepare a proposed judgment and give notice.

The case management conference is vacated.